TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
January 25, 2021
MINUTES

Attachment 1—Staff Report

Present: Barry Wolff, Chair, Julian Hopkins, Beth Santilli, Elliott Barrow, Stephen Wood, Stephen Duke.
Absent: Megan Stevens.
Staff: Michael Robertson, David Pagliarini, Mac Deford, Lynnette Lynes

Mr. Wolff called the meeting to order at 6:02 pm.

A. Approval of Agenda

Mr. Wood moved for approval of the agenda. Mr. Duke seconded the motion. All in favor.

B. Approval of Minutes

Mr. Woof moved for approval of the minutes. Mr. Duke seconded the motion. All in favor.

C. Explanation of Procedures

Mr. Wolff reviewed the procedures with the public.

D. Public Comment

There being no comments, Mr. Wolff continued with the agenda.

E. General Correspondence

1. **Request for one-year extension of Case V-41-05 in accordance with §156.049**

Mr. Duke moved for approval of the request. Mr. Hopkins seconded the motion. All in favor.

F. Administration of Oath

Mr. Wolff administered the oath to those speaking.

G. Business

1. **Case V-36-2020, 1506 Checker Court, TMS# 583-03-00-366, Request for relief from the strict application of PD to allow a 5-foot side yard encroachment. The PD Ordinance requires a 10-foot side yard. Correspondence**

This item was withdrawn.

2. **Case V-38-2020, 262 Commonwealth, TMS# 596-08-00-260, Request for relief from the strict application of §156.111 to allow a 1,225 sq. ft. footprint accessory structure, 26-feet, 3 ½ inches in height. The ordinance allows a maximum 750 sq. ft. footprint for an accessory structure, 18-feet in height.**

- Mr. Jason Dobson, owner, reviewed the request with the Board.

- Ms. Jody Kennedy 3574 Holgrem St, expressed concern with drainage. She stated that there have been drainage issues with this lot since the house was constructed. She expressed concern with the additions to the home, the additional structure and the location of the additional structure. She stated that she is not opposed to having a structure to house the additional vehicles and equipment but is opposed to the additional structure being used for commercial use and storage. She suggested that the location of the additional structure is too close to the property line and would affect their property. She expressed concern with the property values being affected. She expressed concern with uses such as fires in the backyard that could be hazardous to the surrounding property. She suggested that there should be additions to the main structure.

- Mr. Chad Bryant, 3536 Holgrem St, stated that he lives directly across from the proposed property. He is in favor of having the vehicles stored in a building but is not in favor of the size of the proposed structure. He stated that he has not had any difficulty with the owner.

There being no further comments, Mr. Wolff closed public comment.

- Mr. Robertson reviewed staff comments with the Board.

- *Mr. Wood moved for denial based on the findings that the applicant has failed to show that being within the 750 square foot limit would unreasonably restrict the use of property. Mr. Duke seconded the motion. Motion passed on a 4 to 2 vote with Mr. Barrow, Mr. Hopkins, Mr. Duke, and Mr. Wood in favor; Mr. Wolff and Ms. Santilli opposed.*

3. **Case A-1-2021, 32 Montrose, TMS# 517-06-00-732. Appeal of the Zoning Administrator's determination that the property is an "All Yard Building" in accordance with the provisions of the I'On Code Planned Development Ordinance. Applicant contends that the lot should be designated a "Rear Yard Building" based on previous site plan approvals and correspondence with the Planning Department. Record of Zoning Administrator**

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Cordes Ford, attorney, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed the public comments.

- *Mr. Wood moved to uphold the Zoning Administrator's determination. Mr. Duke seconded the motion. Motion passed on a 5 to 1 vote with Mr. Wolff, Ms. Santilli, Mr. Hopkins, Mr. Duke, and Mr. Wood in favor; Mr. Barrow opposed.*

4. **Case V-3-2021, 32 Montrose, TMS# 517-06-00-732, Request for relief from the strict application of the I'On Code to allow development of the lot as a Rear Yard Building or 47% building coverage for an All Yard Building type. The I'On Code Planned Development ordinance limits All Yard Building types to 40% building coverage. The applicant contends previous development plans applied Rear Yard Building standards to the lot.**

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Cordes Ford, attorney, reviewed the request with the Board.

- Ms. Laura Winterfield, owner, stated that they moved forward with their plans based on the letter from Ms. Kate Miller. She suggested that they have done their due diligence and asked that the request be approved.

- There being no further comments, Mr. Wolff closed public comments.

- *Mr. Wolff moved for reconsideration of the previous motion for appeal A-1-2021. Motion failed due to the lack of a second.*

- *Mr. Wood moved for denial of the variance based on findings that the criteria for a hardship has not been met. Mr. Hopkins seconded the motion. All in favor.*

5. **Case V-1-2021, 1896 N. James Gregarie Rd., TMS# 549-12-00-163, Request for relief from the strict application of §156.106 to allow an approximately 500 square foot impervious surface for an accessory use encroachment into the 30-foot DHEC-OCRM critical line impervious area setback.**

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Simmons Young, architect, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comments.

- *Mr. Hopkins moved for denial of the request based on the findings that it does not meet the hardship criteria based on the information included on the application and that it would not enhance property values. Mr. Barrow seconded the motion. All in favor.*

The Board convened for a short break at 7:41 pm and reconvened at 7:49 pm.

6. **Case A-2-2021, 520 Whilden Street, TMS# 532-01-00-271, Appeal of the Zoning Official's determination establishing the west boundary as the front yard. Applicant contends that the determination improperly alters the setbacks and fails to provide the greatest amount of buildable area as required by the Zoning Code and prevents an addition to residence. The applicant contends that the correct interpretation of the particular Zoning Code section is to determine that the East boundary is the "front". Record of Zoning Official**

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Thomas Rhode, attorney, reviewed the request with the Board.

- There being no comments, Mr. Wolff closed public comment.

- *Mr. Wood moved to uphold the Zoning Administrator's determination and denial the appeal. Mr. Duke seconded the motion. Motion passed on a 5 to 1 vote with Mr. Wolff, Ms. Santilli, Mr. Hopkins, Mr. Duke and Mr. Wood in favor; Mr. Barrow opposed.*

7. **Case A-3-2021, 3 William Street, TMS# 532-13-00-133, Appeal of the Zoning Official's determination that items that have been withdrawn may not be refiled for six months in accordance with the Board of Zoning Appeals Rules of Procedures adopted on January 27, 2020. Applicant requests a hearing within the six-month timeframe. Record of Zoning Official**

- Mr. Robertson reviewed staff comments with the Board.

- Mr. James Flatley, owner, reviewed the request with the Board.

- There being no comments , Mr. Wolff closed public comment.

- *Mr. Wood moved to uphold the Zoning Administrator's determination and deny the request based on the findings that the agent was secured by the owner. Mr. Hopkins seconded the motion. All in favor.*

8. **Case V-2-2021, 153 Ponsbury Rd., TMS# 535-06-00-154, Appeal of the strict application of the I'On Code Planned Development to allow lot classification as a Rear Yard Lot with 60% lot coverage and 3-foot side yard setback. Applicant wishes to combine two lots to create a single lot which changes the lot classification to All Yard Lot type which allows 40% lot coverage and requires a 5-foot side yard setback. Additionally, the applicant requests relief from the strict application of § 156.142 (C)(2) to allow repairs and improvements greater than 50% while maintaining 3-foot side yard setback. The ordinance requires nonconforming structures and uses improved by more than 50% to be brought into conformance with all applicable sections of the zoning code. Correspondence**

- Mr. Robertson reviewed staff comments with the Board.

- Ms. Julie O'Connor, architect, reviewed the request with the Board.

- Mr. Rusty Bennett, owner, suggested that the property is unique because of the number of historic trees on the properties. He stated that they intend to keep the existing foundation and if required to remove the foundation, it would be a significant cost and would harm the historic trees. He suggested that the request would enhance the neighborhood as it would not be adding density to the neighborhood with additional dwelling units on the property.

- There being no further comments, Mr. Wolff closed public comments.

- *Mr. Wood moved for approval of the request based on the evidence included in the staff report with the condition that the protected and historic trees on both lots be preserved and prohibit the right to seek a variance to remove any historic or protected trees. Mr. Duke seconded the motion. All in favor.*

9. **Case V-4-2021, 1458 Fiddlers Marsh, TMS# 532-16-00-003, Request for relief from the strict application of §156.226 seeking to forego 9.5 inches in additional tree mitigation as required under Tree Protection Ordinance. The ordinance required 17.5 inches (50%) mitigation for the removal of a 19-inch live oak and 16-inch live oak.**

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Scott Levy, owner, reviewed the request with the Board.

- There being no further comments, Mr. Wolff closed public comment.

- *Mr. Hopkins moved for approval of the request in foregoing future or pending tree mitigation based on the findings that the applicant has gone above and beyond giving extra space for Mount Pleasant Waterworks and their right-of-way and has already planted several trees. Mr. Duke seconded the motion.*

- *Mr. Hopkins moved to amend his motion to include relief from the 9.5 inches of remaining mitigation. Mr. Duke seconded the motion. All in favor with Mr. Barrow abstaining.*

Mr. Wolff called for a vote on the amended motion. Motion failed on a 3 to 3 vote with Mr. Wolff, Mr. Hopkins, and Mr. Duke in favor; Ms. Santilli, Mr. Barrow, and Mr. Wood opposed.

▶ *Ms. Santilli moved for approval of a 50% reduction of the required remaining 9.5 inches of mitigation for the 19 inch and 16 inch live oak trees. Mr. Wood seconded the motion. All in favor.*

H. Approval of Final Orders

The Board approved final orders.

I. Re-adoption of Rules of Procedure

▶ *Mr. Wood moved for approval. Mr. Duke seconded the motion. All in favor.*

J. Election of Officers

▶ The Board approved Mr. Wolff as chair, and Mr. Wood as vice-chair by secret ballot.

K. Executive Session, Case S-2-2020, Bowman Road & Hospital Drive, TMS# 559-00-00-070, Request for Special Exception in accordance with the provisions of Section 156.326 (C) Use Conditions (5) Commercial Uses (g) Gas Station as allowed in 156.318 (D)(5)(d)

▶ *Mr. Wood moved to convene into executive session for legal advice. Mr. Duke seconded the motion. All in favor.*

The Board convened into executive session at 9:33 pm and reconvened at 9:51 pm. No motions were made while in executive session.

There being no further business, the meeting adjourned at 9:52 pm.

Submitted by,
L. Lynes
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